

23STCV22385 23STCV22385

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Young v. Farmers Insurance Company, Inc., et
al.

Defendants' Motion for Summary Judgment, or
in the alternative, Motion for Summary Adjudication

BACKGROUND

On July 24, 2024, Plaintiff Danny Young filed the operative first amended complaint against Defendants Farmers Insurance Company, Inc. and Michelle Behm, asserting causes of action for (1) intentional infliction of emotional distress; and (2) aiding and abetting breach of fiduciary duty.

This action arises from plaintiff's disputes with fellow residents and members of a condominium HOA and board. Those disputes resulted in a defamation lawsuit, followed by a second suit against HOA board members, including Plaintiff, in April 2019 (the "Sim Action"). Defense of the Sim Action was tendered to Farmers, the HOA board's insurer. Behm was the adjuster Farmers assigned to handle the Sim Action claim. Farmers retained counsel to defend Plaintiff in that action. While Plaintiff found the Sim Action against him distressing and wanted to file a malicious prosecution action against those plaintiffs, Behm, acting on Farmers' behalf, chose to settle the Sim Action, communicating with the various parties to achieve that end, despite Plaintiff's desire to continue litigating.

Hyo

Min Lee, a.k.a. Christine Lee ("Lee") is an owner/resident of a unit at the subject condominium complex who, between 2013 and 2016, served as an HOA board director and its president beginning September 2019. Lee allegedly breached a fiduciary duty she owed to plaintiff – which is the subject of the related lead case styled Young v. Lee, et al., Los Angeles County Superior Court Case No. 23STCV00827 ("Related Case"). The FAC alleges that around March 2021, Behm "began developing a prejudice against and dislike of plaintiff" and "began to act in concert with [Lee]." Plaintiff contends Behm's decision to change defense attorneys and settle the Sim Action aided and abetted Lee's breach of fiduciary duty. The settlement allegedly deprived plaintiff of bringing a subsequent malicious prosecution action against the Sim Action plaintiff.

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FAC alleges Behm's communications with HOA President Lee regarding the Sim Action also aided and abetted Lee's breach. Plaintiff alleges Farmers is vicariously liable for Behm's actions.

All

evidentiary objections are preserved.

DISCUSSION

First Cause of Action for Intentional Infliction of Emotional Distress

The elements of an intentional infliction of emotional distress cause of action are: (1) extreme and outrageous conduct by the defendant; (2) intention to cause or reckless disregard of the probability of causing emotional distress; (3) severe emotional suffering; and (4) actual and proximate causation of the emotional distress. To satisfy the element of extreme and outrageous conduct, defendant's conduct must be so extreme as to exceed all bounds of that usually tolerated in a civilized society.

Defendants assert that the first cause of action fails because Defendants did not engage in extreme and outrageous conduct intended to cause Plaintiff emotional distress. Defendant argues that the following allegations do not rise to the level of extreme and outrageous conduct by Defendants: 1) changing plaintiff's defense lawyer in the Sim Action (SSUF, no. 8); 2) sharing defense litigation strategy information in the Sim Action with Lee (SSUF, no. 9); 3) conversing with Lee

regarding the status of the Sim Action (SSUF, no. 10); 4) threatening plaintiff by asserting Farmer's reservation of rights (SSUF, no. 11); 5) agreeing to settle the Sim Action thereby preventing plaintiff from suing Sim for malicious prosecution (SSUF, no. 12); 6) sharing information received from former HOA Board President Susan Ahn with then HOA Board President Lee (SSUF, no. 13); and 7) aiding Lee to have Sim's defense fees in the underlying defamation action be covered by the Farmers settlement proceeds of the Sim Action (SSUF, no. 14).

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Court agrees that these allegations as a matter of law do not rise to the level of extreme and outrageous conduct. Plaintiff's allegations show only management of a defense by an insurer. An insurer that is providing a defense against a liability claim generally has an absolute right to control the defense in the action, including retaining counsel and settling that action. (Safeco Inc. Co. of America v. Sup. Ct. (McKinney) (1999) 71 Cal. App. 4th 782, 786-787; New Hampshire Ins. Co. v. Ridout Roofing Co., Inc. (1998) 68 Cal. App. 4th 495, 502, 506-507.)

Plaintiff's

main contention – that Defendants should not have settled the Sim Action so that Plaintiff could have filed a malicious prosecution action – is speculative in nature. It presumes the HOA and Plaintiff would have prevailed in the Sim Action first so that Plaintiff can then successfully prosecute a malicious prosecution claim against the Sim plaintiffs. Courts have held that an insurer need not refuse settlement in order to preserve the insured's right to file a malicious prosecution action. (Hurvitz v. St. Paul Fire & Marine Ins. Co. (2003) 109 Cal.App.4th 918, 934 ["A rule requiring an insurer to refuse a reasonable settlement merely because the insured hopes to someday prevail in a malicious prosecution action would conflict with the insurer's duty to handle claims efficiently and pay reasonable settlement offers in order to protect the insured from financial ruin caused by an excessive judgment."]) Plaintiff also offers no evidence showing that Defendants settled the action to cause Plaintiff emotional distress.

Second

Cause of Action for Aiding and Abetting Breach of Fiduciary Duty

To

prevail on a claim for aiding and abetting breach of fiduciary duty, Plaintiff must show the following: (1) a third party's breach of fiduciary duties owed to

plaintiff; (2) Defendants' actual knowledge of that breach of fiduciary duties; (3) substantial assistance or encouragement by Defendants to the third party's breach; and (4) Defendants' conduct was a substantial factor in causing harm to Plaintiff. There are two different theories pursuant to which a person may be liable for aiding and abetting a breach of fiduciary duty. (American Master Lease LLC v. Idanta Partners, Ltd. (2014) 225 Cal. App. 4th 1451,1477.) One theory requires that the aider and abettor owe a fiduciary duty to the victim and requires only that the aider and abettor provide substantial assistance to the person breaching his or her fiduciary duty. The second theory arises when the aider and abettor commits an independent tort. (Id.)

Here,

Defendants did not owe Plaintiff a fiduciary duty. As discussed above, there is no evidence showing Defendants committed an independent tort. The cause of action for aiding and abetting breach of fiduciary duty fails.

CONCLUSION

The Court grants Defendants' motion for summary judgment.

Defendants to give notice.